



CHAPTER xcvihi.

An Act for confirming certain agreements purporting to have been made under the Electric Lighting Act 1882 between the National Electric Construction Company Limited and their predecessors in title and certain local authorities and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS the Electric Free Wiring Syndicate Limited was on the sixth day of October one thousand eight hundred and ninety-six registered as a company limited by shares under and pursuant to the Companies Acts 1862 to 1893:

And whereas the National Electric Free Wiring Company Limited (herein-after called "the Company" which expression includes the Company under its subsequent names) was on the sixteenth day of July one thousand eight hundred and ninety-seven registered as a company limited by shares under and pursuant to the Companies Acts 1862 to 1893:

And whereas the undertaking of the said Electric Free Wiring Syndicate Limited was on the fourth day of August one thousand eight hundred and ninety-seven transferred to the Company and thereupon the Company became subject to the liabilities and obligations and entitled to the benefit of the agreement dated the first day of May one thousand eight hundred and ninety-seven set forth in Part I. of the First Schedule to this Act and the agreement dated the eighteenth day of May one thousand eight hundred and ninety-seven set forth in Part II. of the said schedule:

And whereas in pursuance of section 13 of the Companies Act 1862 the name of the Company was with the approval of

[Ch. xcvi.] *National Electric Construction Company Limited Act, 1912.* [2 & 3 GEO. 5.]

A.D. 1912. the Board of Trade changed on the twenty-fourth day of March one thousand eight hundred and ninety-nine to the National Electric Wiring Company Limited and on the twentieth day of May one thousand nine hundred and three to the National Electric Construction Company Limited:

And whereas the agreement set forth in Part I. of the First Schedule to this Act was on the first day of May one thousand eight hundred and ninety-seven made between the said Electric Free Wiring Syndicate Limited and the mayor aldermen and burgesses of the borough of Blackpool and the agreement set forth in Part II. of the First Schedule to this Act was on the eighteenth day of May one thousand eight hundred and ninety-seven made between the said Electric Free Wiring Syndicate Limited and the vestry of the parish of St. Leonard Shoreditch and the agreement set forth in Part III. of the First Schedule to this Act was on the fifth day of October one thousand eight hundred and ninety-nine made between the Company and the urban district council of Wallasey and the agreement set forth in the Second Schedule to this Act was on the nineteenth day of October one thousand eight hundred and ninety-eight made between the Company and the mayor aldermen and citizens of the city and county borough of Canterbury:

And whereas the several agreements (to the same purport as the said agreement set forth in the Second Schedule to this Act but varying in terms) the respective parties to which are set out in the Third Schedule to this Act were made on the dates therein mentioned and copies thereof signed by the Right Honourable John Henry Whitley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred have been deposited in the Parliament Office of the House of Lords and in the Private Bill Office of the House of Commons:

And whereas at the date of each of the said agreements the parties thereto other than the said Electric Free Wiring Syndicate Limited and the Company were undertakers within the meaning and for the purposes of the Electric Lighting Acts 1882 and 1888:

And whereas in pursuance of the Fleetwood Electric Lighting Order 1908 the undertaking of the Fleetwood and District Electric Light and Power Syndicate Limited referred to in the Third Schedule to this Act as from the thirtieth day of September one thousand nine hundred and nine became vested in the urban

district council of Fleetwood who then became and now are subject to the liabilities and obligations and entitled to the benefit of the agreement dated the twenty-sixth day of January one thousand eight hundred and ninety-eight described in the Third Schedule to this Act: A.D. 1912.

And whereas in pursuance of section 70 of the Crystal Palace and District Electric Lighting Order 1890 the portion of the undertaking within the urban district of Beckenham of the South Metropolitan Electric Light and Power Company Limited the successors of the Crystal Palace District Electric Supply Company Limited referred to in the Third Schedule to this Act was as from the first day of January one thousand nine hundred and seven purchased by the urban district council of Beckenham who then became and now are subject to the liabilities and obligations and entitled to the benefit of the agreement dated the nineteenth day of April one thousand eight hundred and ninety-nine described in the Third Schedule to this Act:

And whereas by virtue of a royal charter of incorporation the powers and duties of the Hornsey Urban District Council referred to in the Third Schedule to this Act became vested as from the ninth day of November one thousand nine hundred and three in the mayor aldermen and burgesses of the borough of Hornsey who then became and now are subject to the liabilities and obligations and entitled to the benefit of the agreement dated the thirtieth day of December one thousand nine hundred and one described in the Third Schedule to this Act:

And whereas by virtue of a royal charter of incorporation the powers and duties of the Wallasey Urban District Council referred to in the First Schedule to this Act became vested as from the ninth day of November one thousand nine hundred and ten in the mayor aldermen and burgesses of the borough of Wallasey who then became and now are subject to the liabilities and obligations and entitled to the benefit of the agreement dated the fifth day of October one thousand eight hundred and ninety-nine described in the First Schedule to this Act:

And whereas by the London Government Act 1899 the powers and duties of the vestry of the parish of St. Leonard Shoreditch referred to in the First Schedule to this Act became vested in the mayor aldermen and councillors of the metropolitan borough of Shoreditch who then became and now are subject to

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912. the liabilities and obligations and entitled to the benefit of the agreement dated the eighteenth day of May one thousand eight hundred and ninety-seven described in the First Schedule to this Act :

And whereas when the said agreements were entered into the obligations undertaken by the respective local authorities parties thereto were believed to be within the powers of the said several parties but doubts have arisen whether the said parties or their successors as aforesaid are empowered to carry the said agreements into effect :

And whereas the Company and their predecessors as aforesaid have spent large sums of money in reliance upon the said parties being able to perform such obligations :

And whereas the Company issued by public subscription debentures to the amount of £75,000 largely secured on the said agreements which were assigned to trustees for the debenture holders :

And whereas it is expedient that the said agreements should be confirmed and should be made binding upon the Company and the respective local authorities with whom the same were made or to whom the liabilities obligations and benefit of the same have been transferred :

And whereas doubts have arisen as to whether the electric lines fittings apparatus and appliances supplied by the Company or their predecessors belong to the undertakers within the meaning of sections 24 and 25 of the Electric Lighting Act 1882 and section 16 of the Electric Lighting Act 1909 and it is expedient that such doubts should be removed :

And whereas the indenture set forth in the Fourth Schedule to this Act was intended to be and purports to have been made in the exercise of the powers conferred by section 11 of the Electric Lighting Act 1882 between the mayor aldermen and burgesses of the borough of Carnarvon and the National Electric Wiring Company Limited and doubts have arisen as to the validity of the said indenture and it is expedient that the said indenture should be confirmed and should be made binding on the parties thereto :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

[2 & 3 GEO. 5.] *National Electric Construction* [Ch. xcvihi.]
Company Limited Act, 1912.

May it therefore please Your Majesty that it may be enacted A.D. 1912.
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

1. This Act may be cited as the National Electric Construc- Short title.
tion Company Limited Act 1912.

2. "The Company" means the National Electric Construction Interpreta-
Company Limited. tion.

3. The agreements set forth in the First and Second Confirmation
Schedules to this Act and the agreements referred to in the of agree-
Third Schedule to this Act are hereby confirmed and made ments.
binding upon the respective local authorities parties thereto and
upon the respective local authorities to whom the liabilities obli-
gations and benefit thereof have been transferred as in this Act
recited and also upon the Company as from the respective dates
of the said agreements and the said agreements shall be carried
into effect according to the true intent and meaning thereof:

Provided that nothing in this section contained shall empower
the Company to provide and fix any new wires and fittings
(other than by way of renewal of existing wires and fittings)
in pursuance of any of the said agreements (other than the
agreements with the corporation of Carnarvon and the provost
magistrates and councillors of the burgh of Borrowstounness)
and nothing in this section shall empower the respective local
authorities (other than as aforesaid) parties to the agreements
to incur any obligations or liabilities in respect of any new wires
and fittings provided by the Company otherwise than by way
of renewal.

4. Sections 24 and 25 of the Electric Lighting Act 1882 Electric
and section 16 of the Electric Lighting Act 1909 shall apply to lines &c.
all electric lines fittings apparatus and appliances supplied by the freed from
Company under any of the said agreements as if the same had distress and
been supplied by the undertakers and belonged to the undertakers execution.
within the meaning of those sections.

5.—(1) The local authorities whose names are set forth in For protec-
the first column of the following table shall pay the sums set tion of cer-
opposite their names respectively in the second column thereof tain local
authorities.

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912. to the Company within one month after the passing of this Act and those sums respectively shall be accepted by the Company in full satisfaction for the purchase by the local authorities respectively of the wiring and fittings situate within their respective districts and as the agreed sum for compounding by a single payment for all future payments under the agreements which are set forth or referred to in the First Second or Third Schedules to this Act and whereof the dates are set forth in the third column of the said table and in full satisfaction of all other claims (including arrears of payments) which the Company may have against the said respective local authorities under the respective agreements and thereupon all the rights property and interest of the Company of or in respect of the wiring and fittings installed by the Company in the several districts of the local authorities whose names are set forth in the said table shall vest in the local authority of the district in which they are situate and the powers rights property and interest of the Company and their predecessors therein shall absolutely cease and determine:—

Local Authority.	Amount.	Date of Agreement.
Mayor aldermen and burgesses of the borough of Blackpool.	£ 125	1st May 1897.
Mayor aldermen and citizens of the city of Canterbury.	125	19th October 1898.
Mayor aldermen and citizens of the city of Gloucester.	20	30th October 1899.
Mayor aldermen and burgesses of the borough of Taunton.	1000	1st December 1897. 30th December 1902.
Mayor aldermen and burgesses of the borough of Tunbridge Wells.	50	15th February 1899.
Fleetwood Urban District Council -	40	26th January 1898.
Beckenham Urban District Council -	210	19th April 1899.

(2) Each of the said local authorities may pay any moneys payable by them under this section out of the revenue of their electricity undertaking or out of any reserve fund existing in respect thereof.

For pro-
tection of
Rathmines
and Rathgar
Urban Dis-
trict Council.

6.—(1) If within two months after the passing of this Act the Rathmines and Rathgar Urban District Council (in this section referred to as “the council”) by resolution determine to exercise the option given by clause 7 of the agreement with that council (in this section referred to as “the principal

agreement") dated the seventeenth day of May one thousand eight hundred and ninety-nine mentioned in the Third Schedule to this Act the amount of the single payment to be made by the council to the Company under the said clause of the principal agreement shall be the sum of one thousand one hundred and sixty pounds and that sum shall be paid within three months after the passing of this Act and thereupon all the rights property and interest of the Company under and by virtue of the principal agreement and under and by virtue of all subsidiary agreements made between the Company or their predecessors and consumers of electricity and others within the district of the council entered into under the principal agreement together with all electric lines wires and fittings belonging to the Company in connexion therewith shall be transferred to and shall vest in the council and the rights property and interest of the Company and their predecessors therein shall absolutely cease and determine. A.D. 1912

(2) Any expenses (including the said sum of one thousand one hundred and sixty pounds) incurred by the council in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the council under this section on revenue account may be applied in the maintenance repair or renewal of any electric lines wires or fittings acquired by the council under this section and subject thereto shall be applied in manner provided by section 52 of the Rathmines and Rathgar Township Electric Lighting Order 1896 and any money received by the council on capital account may be applied in or towards payment of the said sum of one thousand one hundred and sixty pounds and subject thereto shall be applied in manner provided by section 53 of the said Order.

(3) Sections 24 and 25 of the Electric Lighting Act 1882 and section 16 of the Electric Lighting Act 1909 shall apply to all electric lines wires and fittings acquired by the council under subsection (1) of this section as if the same had been supplied by the undertakers and belonged to the undertakers within the meaning of those sections.

A.D. 1912.

(4) The council may charge consumers on whose premises any electric lines wires and fittings acquired by the council under subsection (1) of this section have been fixed and who use such lines wires and fittings a sum for the use of the same of not exceeding one penny per Board of Trade unit of electrical energy supplied through such lines wires and fittings and section 18 of the Electric Lighting Act 1909 shall apply to any payment to be made to the council under this section.

(5) Clause 7 of the principal agreement shall extend to enable the council to sell and the owner lessee or occupier of any premises where any electric lines wires and fittings acquired by the council under subsection (1) of this section are installed to purchase the same for such price and upon such terms and conditions as may be agreed upon between the council and such owner lessee or occupier.

For pro-
tection of
Pembroke
Urban Dis-
trict Council.

7.—(1) If within two months after the passing of this Act the Pembroke Urban District Council (in this section referred to as "the council") by resolution determine to exercise the option given by clause 7 of the agreement with that council (in this section referred to as "the principal agreement") dated the twelfth day of June one thousand eight hundred and ninety-nine mentioned in the Third Schedule to this Act the amount of the single payment to be made by the council to the Company under the said clause of the principal agreement shall be the sum of two hundred and seventy-nine pounds seven shillings and ten pence and that sum shall be paid within three months after the passing of this Act and thereupon all the rights property and interest of the Company under and by virtue of the principal agreement and under and by virtue of all subsidiary agreements made between the Company or their predecessors and consumers of electricity and others within the district of the council entered into under the principal agreement together with all electric lines wires and fittings belonging to the Company in connexion therewith shall be transferred to and shall vest in the council and the rights property and interest of the Company and their predecessors therein shall absolutely cease and determine.

(2) Any expenses (including the said sum of two hundred and seventy-nine pounds seven shillings and ten pence) incurred by the council in carrying into effect the provisions of this

section shall be deemed to be expenses incurred by the council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the council under this section on revenue account may be applied in the maintenance repair or renewal of any electric lines wires or fittings acquired by the council under this section and subject thereto shall be applied in manner provided by section 52 of the Pembroke Township Electric Lighting Order 1896 and any money received by the council on capital account may be applied in or towards payment of the said sum of two hundred and seventy-nine pounds seven shillings and ten pence and subject thereto shall be applied in manner provided by section 53 of the said Order.

A.D. 1912.

(3) Sections 24 and 25 of the Electric Lighting Act 1882 and section 16 of the Electric Lighting Act 1909 shall apply to all electric lines wires and fittings acquired by the council under subsection (1) of this section as if the same had been supplied by the undertakers and belonged to the undertakers within the meaning of those sections.

(4) The council may charge consumers on whose premises any electric lines wires and fittings acquired by the council under subsection (1) of this section have been fixed and who use such lines wires and fittings a sum for the use of the same of not exceeding one penny per Board of Trade unit of electrical energy supplied through such lines wires and fittings and section 18 of the Electric Lighting Act 1909 shall apply to any payment to be made to the council under this section.

(5) Clause 7 of the principal agreement shall extend to enable the council to sell and the owner lessee or occupier of any premises where any electric lines wires and fittings acquired by the council under subsection (1) of this section are installed to purchase the same for such price and upon such terms and conditions as may be agreed upon between the council and such owner lessee or occupier.

8. The indenture as set forth in the Fourth Schedule to this Act is hereby confirmed and made binding on the mayor aldermen and burgesses of the borough of Carnarvon and the Company as from the date of the said indenture and the said indenture shall be carried into effect according to the true intent and meaning thereof.

Confirmation
of indenture
in Fourth
Schedule.

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912.

Copy of
Act to be
registered.

9. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding-up in England.

Costs of Act.

10. All costs charges and expenses of and preliminary to and incidental to preparing and obtaining this Act or otherwise in relation thereto shall be borne and paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

FIRST SCHEDULE.

PART I.

AGREEMENT made the first day of May one thousand eight hundred and ninety-seven between THE ELECTRIC FREE WIRING SYNDICATE LIMITED of Prescott (herein-after called "the Syndicate") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BLACKPOOL (herein-after called "the Corporation") of the other part.

Stamp.

Ten
shillings

WHEREAS the Corporation are the undertakers for the purposes of the Blackpool Electric Lighting Order 1890 and within the said borough aforesaid for the purposes of the Electric Lighting Acts of 1882 and 1888:

And whereas the Syndicate have agreed with the Corporation to supply those of their consumers who may apply for the same with all the necessary wirings and fittings for their houses shops buildings and other premises upon the terms and conditions herein-after set forth and inasmuch as such supply will be of advantage to the Corporation for increasing the demand for electricity:

It is hereby mutually agreed by and between the parties hereto as follows:—

1. That the Syndicate will within three calendar months from the date of this agreement and thereafter when required by notice in writing from the Corporation or from any person entitled to a supply of electricity under the said Order and Acts provide and fix all the necessary wires on the premises specified in such notice and provide and fix in and about such premises such fittings adapted to the same according to the class of property to which such premises belong as the Corporation or person entitled as aforesaid may select from the stock or catalogues of the Syndicate kept by them for that purpose as herein-after provided.

2. That the Syndicate will provide at least two classes of fittings of types and patterns to be approved by the borough electrical engineer of the Corporation one type to be used in houses shops buildings and premises rated to the poor rate below twenty pounds per annum and the other for houses shops buildings and premises rated to the poor rate at twenty pounds per annum and upwards.

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912.

3. That the Syndicate will also provide and keep open upon all week days free of all cost to the Corporation an office and premises in the borough of Blackpool for public inspection in such office and premises of fittings and other things requisite for installations of electric light and power and at which said office and premises all notices and forms relating to this agreement may be left and delivery of the same at such office or premises shall be deemed to be service upon the Syndicate.

4. That the Syndicate will provide and keep at their said office and premises a complete catalogue or catalogues showing the various fittings and apparatus intended for installations under this agreement and the Syndicate shall provide the Corporation with a duplicate of the said catalogue or catalogues together with a list showing the net cost of each class and size of wires fittings and other appliances and apparatus.

5. The Syndicate will make no charge against the Corporation or persons for the said wiring and fittings or the work in connexion therewith except as herein-after mentioned and the said wiring and fittings shall as between the Syndicate and the Corporation remain the property of the Syndicate until paid for as herein-after provided but the Corporation do not in any way undertake or guarantee that the said wiring and fittings shall be or remain the property of the Syndicate.

6. Upon completion of an installation under the provisions of this agreement and the connexion of the same to the Corporation's supply mains the Syndicate shall within three calendar months thereafter render to the Corporation a statement showing the time rate and material and other costs of the said installation and any person authorised by the borough electrical engineer of the Corporation shall be at liberty to examine and take extracts from the books of the Syndicate for the purpose of verifying any such statement.

7. On the Syndicate carrying out any installation or work provided for by this agreement in a workmanlike manner and in accordance with the Corporation's wiring regulations and providing suitable wiring and fittings the Corporation will render to the Syndicate quarterly accounts indicating the amount of electricity supplied to the premises and paid for on which such installation or work has been carried out and will pay to the Syndicate three farthings per Board of Trade unit for every unit of electricity so supplied and paid for by such persons until such wiring and fittings have been purchased as herein-after provided.

8. Each and every person shall have the option at or after the expiration of five years from the date of the connexion of the installation to the Corporation's supply mains of purchasing from the Syndicate the said wiring and fittings installed in his premises at the original cost

price plus twenty per centum and less one-and-a-half per centum per annum for depreciation and the Corporation shall have the like option of purchasing on the same terms from the Syndicate the whole of the wiring and fittings installed by the Syndicate at the date of the exercising by the Corporation of such option save and except such wiring and fittings as shall have been installed in the premises of and purchased by any such person as aforesaid. Provided that if such last-mentioned option be exercised by the Corporation the option hereinbefore given to the aforesaid persons shall cease except so far as the same shall have already been exercised.

9. In case any person shall require fittings other than those kept in stock or catalogued by the Syndicate for the class of property to which his premises belong he shall at the time of ordering pay the Syndicate for the same and the said fittings shall thereupon become his property.

10. The Syndicate shall not after the expiration of six calendar months from the date of the connexion of the installation to the Corporation's supply mains be liable for any repairs to or maintenance of the wires and fittings all of which shall be done by the person at his own expense nor then unless in the opinion of the borough electrical engineer of the Corporation the same shall be due to faulty workmanship or material. The renewal of all lamps whether within the period of six calendar months aforesaid or not must be done by the person at his own expense.

11. This agreement shall not be construed as granting a monopoly to the Syndicate and nothing herein-before mentioned shall bar the right of the Corporation to enter into similar or other agreements with any other companies syndicates or persons.

12. This agreement shall be terminated except so far as it would relate to installations already completed by either the Syndicate or the Corporation giving to the other of them six calendar months' notice in writing of their intention so to terminate.

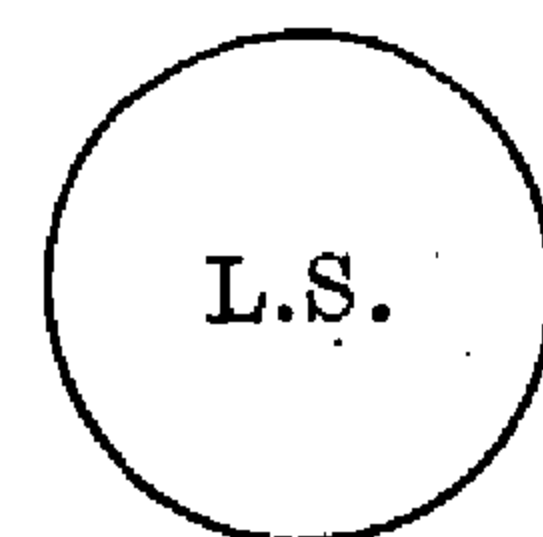
13. The Syndicate shall have the right subject to the consent of the Corporation under the hand of the town clerk to assign the benefit of this agreement to any other company syndicate or person but any such assignment shall be subject to all obligations and liabilities of the Syndicate thereunder or arising thereout and also subject to any such company syndicate or person entering into an agreement with the Corporation to undertake all such obligations and liabilities.

14. Any notice or requirement from the Corporation under this agreement may be under the hand of their borough electrical engineer for the time being.

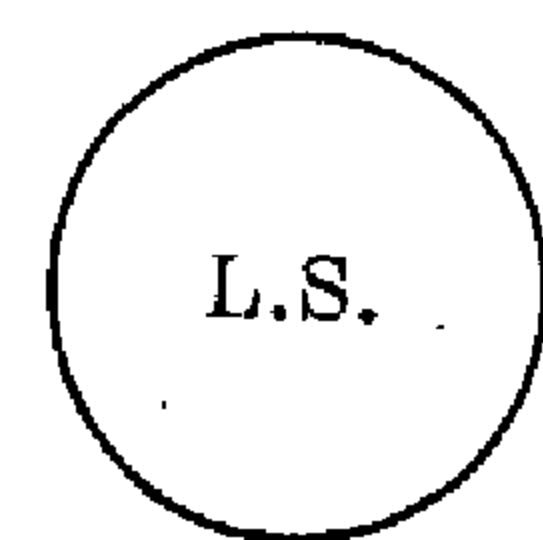
[Ch. xcvi.] *National Electric Construction* [2 & 3 Geo. 5.]
Company Limited Act, 1912.

A.D. 1912. in witness whereof the Syndicate and the Corporation have here-
 unto caused their respective common seals to be affixed the day and
 year first before written.

J. ATHERTON }
 G. H. NISBETT } Directors.
 H. J. NISBETT Secretary.



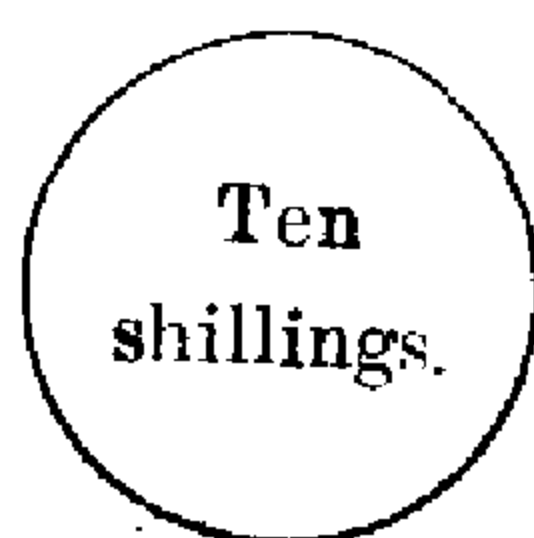
The common seal of the mayor aldermen and
 burgesses of the borough of Blackpool
 was hereunto affixed by authority of
 the council of the said borough in the
 presence of



JAMES WARD Mayor
 by
 T. LOFTOS Town Clerk.

PART II.

Stamp.



AGREEMENT made the eighteenth day of May one thousand eight
 hundred and ninety-seven between THE ELECTRIC FREE
 WIRING SYNDICATE LIMITED of Prescott in the county of
 Lancaster (herein-after called "the Syndicate") of the one
 part and THE VESTRY OF THE PARISH OF ST. LEONARD
 SHOREDITCH (herein-after called "the Vestry") of the other
 part.

WHEREAS the Vestry in accordance with the terms of a Provisional
 Order granted to them under the Electric Lighting Acts 1882 and
 1888 have erected buildings machinery and laid mains for the supply
 of electricity in their district:

And whereas the said Syndicate have agreed with the said Vestry
 to supply those of their consumers approved by the Vestry who may
 apply for the same with all the necessary wiring and fittings for their
 houses upon the terms and conditions herein-after set forth and such
 supply will be of advantage to the Vestry for increasing the demand
 for electricity:

It is hereby mutually agreed by and between the parties hereto
 as follows:—

1. The Syndicate will as and when required by the Vestry or any
 person previously approved by the Vestry who is willing to take a
 supply of electricity in Shoreditch provide and fix the necessary wires
 on the premises of any consumer within the district of the Vestry
 who has agreed to take a supply of electricity from the Vestry and
 connect such wires with the meter fixed on such premises by the

Vestry and provide and fix in and about such premises such fittings adapted to the same according to the class of property to which such premises belong as the said consumer may select from the stock of the said Syndicate kept by them for that purpose all such work to be done in all respects to the satisfaction of the chief electrical engineer of the Vestry and so as to pass all usual and reasonable tests of the Vestry. A.D. 1912.

2. The Syndicate will make no charge against the Vestry or consumers for the said wiring and fittings or the work in connexion therewith except as herein-after mentioned and the said wiring and fittings shall become the absolute property of the Vestry as and when provided and fixed as aforesaid and shall remain vested in the Vestry so long as the payments hereafter provided for are made by the Vestry to the Syndicate on account thereof but the Vestry shall be under no obligation to repair or maintain the same or to make good or replace the same in case of their destruction or loss from any cause whatever but on the Vestry giving notice to the Syndicate of their intention not to supply electricity further through the said wires and fittings whether by reason of the refusal of the consumer to take or pay for such supply or from any other lawful reason the said property in the wiring and fittings shall thereupon revert in the Syndicate subject to the lien of the Vestry thereon for any moneys then due to the Vestry by the Syndicate. The Syndicate shall be responsible for all damage or injury done by them at any time to any premises wired or fitted by them and for all consequences claims injuries or damage arising by the presence of such wiring or fitting on such premises and the Syndicate shall save harmless and keep indemnified the Vestry therefrom.

3. The Vestry will on the Syndicate carrying out the said work in a workmanlike manner and providing suitable wiring and fittings render to the Syndicate quarterly accounts indicating the amount of electricity supplied to the premises on which such work has been carried out and will pay to the said Syndicate three farthings per Board of Trade unit for every such unit so supplied as shown by the Vestry's meter until the said wiring and fittings shall be purchased by the consumer or the Vestry. Before supplying any consumer whose wiring and fittings have been provided under this contract the Vestry shall have the right to require such deposit or payment in advance to be made by such consumer on account of electricity to be supplied to him as the Vestry shall deem expedient.

4. Every consumer shall have the option at or at any time after the expiration of five years from the date of installation of purchasing from the Syndicate all their rights in the said wiring and fittings installed in his premises at the original cost price of labour and materials plus twenty per cent and less one-and-a-half per cent per annum for depreciation and upon such payment being made the

A.D. 1912. — property in the said wiring and fittings shall be divested from the Vestry and vested in such consumer who shall then be entitled to a supply of electricity on the same terms as other consumers in the district providing their own fittings and wiring and the Vestry shall have the like option at or at any time after the expiration of three years from the date of installation of compounding for all future payments to be made by them in respect of the electricity supplied to the said wiring and fittings or any of them by one payment to the Syndicate of a sum reckoned on the same basis as the purchase money payable by a consumer as above mentioned on the payment whereof the Syndicate shall cease to have any rights over the said wiring and fittings which shall thenceforth remain the sole and absolute property of the Vestry free from any further payments in respect of the installation or use thereof. Provided that a composition of payments under such last-mentioned option shall be subject to a prior exercise of the consumer's option of purchase.

5. Upon the execution of any installation or at such other time as the Vestry think fit the Syndicate shall render to the Vestry an account of the actual prime cost of labour and material in respect of such wiring and fittings and a duly authorised officer of the Vestry shall be at liberty to examine the Syndicate's books for the purpose of checking such cost and an account of all alterations to every such installation as and when made shall be in a like manner rendered to the Vestry upon execution thereof or at such other time as the Vestry may think fit.

6. In case any consumer shall require fittings other than those kept in stock by the said Syndicate for the class of property to which his premises belong he shall on ordering the same pay the Syndicate for the same which shall thereupon become his property.

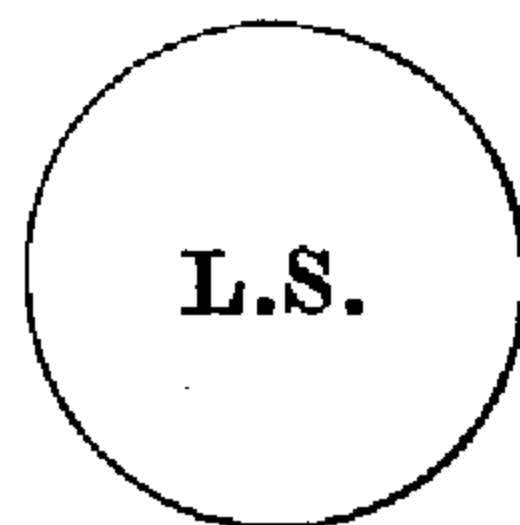
7. The Syndicate shall not after the expiration of six calendar months from the date of the connexion of the installation to the Vestry's supply mains be liable for any repairs to or maintenance of the wires and fittings all of which shall be done by the consumer at his own expense nor then unless in the opinion of the Vestry's chief electrical engineer the same shall be due to faulty workmanship or material. The renewal of all lamps whether within the period of six calendar months aforesaid or not must be done by the consumer at his own expense.

8. The Syndicate shall have the right to assign the benefit of this agreement to any other company to be formed to take over the business of the Syndicate and so long as the Syndicate comply with all the provisions of this contract the Vestry shall not enter into a contract to execute free wiring work in respect of which a charge is made by the Vestry upon similar terms to this contract with other

persons except that the Vestry may contract to supply electricity through coin freed meters on special terms where the consumer has his wiring put in free by the vendors of such meters. A.D. 1912.

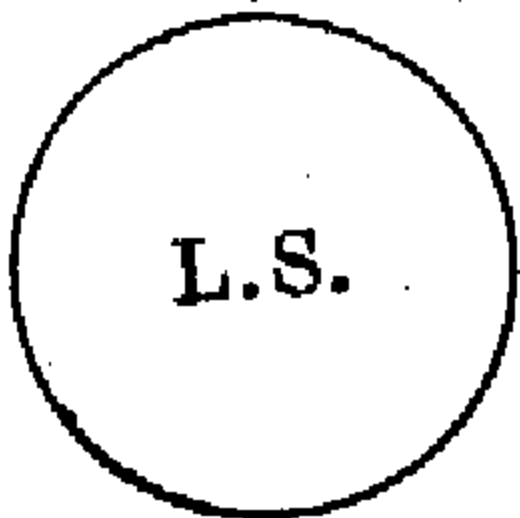
9. The Syndicate shall be bound within six months from the date of the signing of this contract to do all the wiring ordered by the Vestry within a reasonable time and in the event of their failing so to do either by reason of insufficiency of capital or otherwise the exclusiveness of this agreement as provided by paragraph 8 hereto shall cease and determine.

The common seal of the Vestry of the parish
of St. Leonard Shoreditch was hereunto
affixed pursuant to resolution of the
above date in the presence of



H. MANSFIELD ROBINSON Solicitor and Vestry Clerk.

Passed under the common seal of the said
Syndicate in the presence of



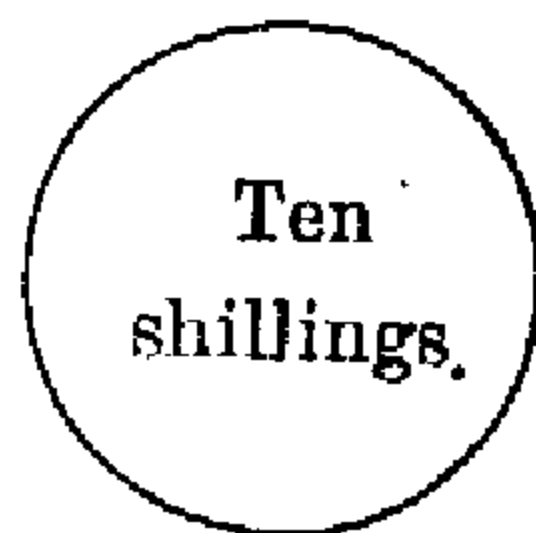
J. ATHERTON
G. H. NISBETT } Directors.

H. J. NISBETT Secretary.

PART III.

AGREEMENT made the fifth day of October one thousand eight hundred and ninety-nine between THE NATIONAL ELECTRIC WIRING COMPANY LIMITED of Faraday House 8 Charing Cross Road London W.C. (herein-after called "the Company") of the one part and THE WALLASEY URBAN DISTRICT COUNCIL (herein-after called "the Council") of the other part.

Stamp.



WHEREAS on the seventh day of January one thousand eight hundred and ninety-seven, an agreement was entered into between the Electric Free Wiring Syndicate Limited of Prescott in the county of Lancaster of the one part and the said Council of the other part relative to the supplying by such Syndicate to all consumers of the Council's electric energy who wished to take advantage of free wiring with all necessary wirings and fittings:

And whereas by the last-mentioned agreement it was provided that the Syndicate should have the right to assign the benefit of the said agreement to any other company to be formed to take over the business of the said Syndicate:

A.D. 1912.

And whereas the said Syndicate did by _____ assign unto the National Electric Wiring Company Limited the benefit of the said recited agreement:

And whereas in pursuance of the said recited agreement the Syndicate or the Company one or both of them duly fitted up certain premises of the Council to wit the Seacombe Egremont and New Brighton ferries sanitary office hospital and public offices for the use of the electric energy at a cost of one thousand one hundred and forty-one pounds seven shillings and eleven pence:

And whereas the Company have agreed to sell to the Council the said fittings for the sum of one thousand two hundred and sixty-five pounds ten shillings and three pence and the Council have agreed to purchase such fittings upon consideration that the premises so fitted up shall be removed from the purview and operation of the before-recited agreement:

And whereas for the considerations aforesaid the Council have agreed to forego their right of pre-emption during a period of five years and entirely of fittings placed in consumers' premises and to give the Company the right to dispose of such fittings upon such conditions as the Company think fit only upon the purchase of such fittings by any person the right of the Company to receive three farthings per unit of energy passing through such fittings shall absolutely from the payment of the purchase money cease and determine:

And whereas it has been agreed between the Company and the Council that the before-recited agreement except as to all acts done thereunder shall cease and determine from the date of the execution hereof and that this agreement shall be in lieu thereof:

And whereas the Council in accordance with the terms of a licence granted to them under the Electric Lighting Acts 1882 and 1888 have erected buildings and machinery and laid mains for the supply of electricity in their district:

And whereas the said Company have up to the thirtieth June last fitted up consumers' premises as per the list annexed hereto marked "A" and have agreed with the said Council to supply those consumers who may in future apply for the same with all necessary wirings and fittings herein-after set forth and such supply will be an advantage to the Council by increasing the demand for electricity:

It is hereby mutually agreed between the parties hereto as follows:—

1. The Company will when required by the Council provide the necessary wires on the premises of any consumer within the district of the Council who has agreed to take a supply of electricity from

the Council and connect such wires with the meter fixed on such premises by the Council and provide and fix in and about such premises such fittings (subject to the approval of the electrical engineers of the Council) adapted to the same according to the class of property to which such premises belong as the said consumer may select from the stock of the Company kept by them for that purpose.

2. The Company will make no charge against the Council or consumers for the said wiring and fittings already carried out or to be carried out or the work in connexion therewith except as hereinafter mentioned and the said wiring and fittings shall remain the property of the Company and these shall be removed by the Company when any consumer shall have requested the Council to make such removal.

3. The Company will render to the said Council quarterly returns indicating the cost of such wiring and fittings and the electrical engineer of the Council shall be at liberty from time to time to inspect the books of the said Company for the purpose of checking such cost.

4. The Council will on the Company carrying out the said work in a workmanlike manner and providing suitable wiring and fittings render to the Syndicate quarterly accounts indicating the amount of electricity supplied to the premises on which such work has been carried out and will pay to the said Syndicate three farthings per Board of Trade unit for every such unit (except that supplied to the premises of the Company and the premises of the Council so supplied) until such money and fittings have been paid for by the Council or purchased by any person as herein-after provided.

5. Every consumer shall have the option at the expiration of five years from the date of the installation of purchasing from the Company the said wiring and fittings installed in his premises at the original cost price plus fifteen per cent. and less one-and-a-half per cent. per annum for depreciation.

6. Should the Council give notice to the Company that they the Council are desirous of purchasing the whole of the wiring and fittings installed in the consumers' premises in their said district the Company shall render to the Council an account of the cost of such wiring and fittings so proposed to be purchased and a duly authorised officer of the Council shall be at liberty to examine the Company's books for the purpose of checking such cost.

7. In case any consumer shall require fittings other than those kept in stock by the Company for the class of property to which his premises belong he shall on ordering the same pay the Company for the same which shall thereupon become his property.

[Ch. xcvi.] *National Electric Construction* [2. & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912.

8. The Company shall not be liable for any repairs to or maintenance of the wires and fittings all of which (including the renewal of the lamps) shall be done by the consumer at his own expense.

9. The Council will not during the continuance of this agreement make any contract with any other person or body relative to the wiring of consumers' premises within their district but this provision shall not affect the right of the Council to the contract for the wiring of premises belonging to themselves.

10. The Company shall have the right to assign the benefit of this agreement to any other company to be formed to take over the business of the Company.

11. If any damage shall be caused through carrying out the work of wiring and fitting the Company will make good the same and will indemnify the Council from all claims and demands in respect thereof.

12. Either the Council or the Company may put an end to this agreement by giving to the other three calendar months' notice in writing that they do not desire to continue the same as regards the supply to any additional consumers but such determination shall not affect the terms of this agreement as regards work then already done.

13. The Company agree to sell and the Council agree to purchase the installations made by the Company and the Syndicate (or one or both of them) between the seventh day of January one thousand eight hundred and ninety-seven and the month of June one thousand eight hundred and ninety-nine at the following places and upon the following terms viz. :—

Seacombe Ferry ;

Egremont Ferry ;

New Brighton Ferry ;

Sanitary Office ;

Hospital ; and

Public Offices Egremont ;

at the sum of one thousand two hundred and sixty-five pounds ten shillings and three pence which amount the Council will pay to the Company upon the execution hereof And from the date hereof and from such payments such premises shall altogether be eliminated from the purview of the present agreement except as before-mentioned in this clause and from the purview and operation of the before-recited agreement of the seventh day of January one thousand eight hundred and ninety-seven.

14. The Council agree with the Company in consideration of the Company selling to the Council the installations referred to in the last-mentioned clause to forego the right of pre-emption during a period of five years from installation and entirely of fittings placed in consumers' premises and to give the Company the right to dispose of such fittings upon such conditions as the Company think fit as appears in clause 5 of this agreement only upon the purchase of such fittings the right of the Company to receive three farthings per unit of energy passing through such fittings shall absolutely from the payment of the purchase money cease and determine.

A.D. 1912.

15. The Council and the Company hereby mutually agree that the before-recited agreement of the seventh day of January one thousand eight hundred and ninety-seven except as to all acts done thereunder and except as otherwise provided by this agreement shall cease and determine from the date of the execution hereof and that this agreement shall be in lieu thereof.

In witness whereof the said Company and the Council have hereunto affixed their respective common seals the day and year first before written.

"A"

[Here follows a statement showing the free wired installations for electric supply and cost of same to the thirtieth day of June one thousand eight hundred and ninety-nine.]

Passed under the common seal of the National
Electric Wiring Company in the presence
of

L.S.

R. STEWART BAIN }
J. W. SWAIN } Directors.

W. B. COWNIE Secretary.

Passed under the common seal of the
Wallasey Urban District Council in the
presence of

L.S.

— PAXTON Presiding Chairman of the Council.

R. STEEL Presiding Chairman of the Finance Committee.

H. W. COOK Clerk to the Council.

A.D. 1912.

SECOND SCHEDULE.

Stamp.



AN AGREEMENT made this nineteenth day of October one thousand eight hundred and ninety-eight between THE NATIONAL ELECTRIC FREE WIRING COMPANY LIMITED of eleven Charing Cross Road in the county of London (herein-after called "the Wiring Company") of the one part and the MAYOR ALDERMEN AND CITIZENS OF THE CITY AND COUNTY BOROUGH OF CANTERBURY (herein-after called "the Corporation") of the other part.

WHEREAS the Corporation in accordance with the terms of a Provisional Order granted to them under the Electric Lighting Acts 1882 and 1888 have erected buildings and machinery and have laid mains for the supply of electricity in the district defined as the area of supply under the said Provisional Order :

And whereas the Wiring Company have agreed with the Corporation to supply those of their consumers who may apply for the same with all the necessary wiring and fittings for their houses upon the terms and conditions herein-after set forth and such supply will be of advantage to the Corporation by increasing the demand for electricity :

It is hereby mutually agreed between the parties hereto as follows :—

1. The Wiring Company will when required by the Corporation and subject in all respects to the same conditions as under the said Provisional Order are prescribed in the case of an ordinary consumer provide and fix the necessary wires and fittings for using electricity for lighting purposes on the premises of any consumer within the district of the Corporation who has agreed to take a supply of electrical energy for lighting purposes from the Corporation on the conditions as to security set forth in that behalf in the said Provisional Order and will connect such wires with the meter fixed on such premises by the Corporation and provide and fix in and about such premises such fittings reasonably necessary for efficiently lighting the same and adapted to the class of property to which such premises belong as the said consumer may select from the stock of the Wiring Company kept by them for that purpose Provided nevertheless that the Wiring Company shall have the option of refusing to provide such wires and fittings in any case in which in their opinion the security for payment therefor will be insufficient.

A.D. 1912.

2. The Wiring Company will make no charge against the Corporation or the consumer for the said wires or fittings or the work in connexion therewith except as herein-after mentioned and the said wires and fittings shall become the property of the Corporation subject to the right of the Wiring Company to be paid therefor as herein-after provided and the Wiring Company shall be responsible for all proper and legal claims for damage or injury done by them or their agents or workmen to any premises thus wired or fitted by them and for all claims for injuries or damage which can be legally made against the Corporation in consequence of or in connexion with such wiring or fitting and the Wiring Company shall save harmless and keep indemnified the Corporation in respect of all such claims. Provided always that the Corporation shall not in any case be bound to purchase the said wires and fittings except on behalf of a consumer as herein-after provided. Provided also that in the event of a consumer being desirous of discontinuing the use of the electric light the Wiring Company may if they so desire remove the wires and fittings from the premises of such consumer but such removal shall be effected at the expense and risk of the Wiring Company and the Wiring Company shall save harmless and keep indemnified the Corporation in respect of all claims for injuries or damage done which can be legally made against the Corporation in consequence of or in connexion with such removal.

3. An agreement shall be entered into between the Corporation and the consumer in the form set forth in the schedule hereto and there shall when required by the Wiring Company be a further agreement entered into by the landlord or owner of the premises recognising the legal ownership of the wires and fittings by the Corporation as also set forth in the schedule hereto.

4. The Corporation shall not be entitled to require the Wiring Company to execute any work on the premises of a consumer or intending consumer unless the Corporation shall first have procured the execution by him and also by the landlord or owner where so required by the Wiring Company of such agreement or agreements as aforesaid and if so required produced the same to the Wiring Company and furnished to the Wiring Company a copy thereof.

5. The Corporation will on the Wiring Company carrying out the said work in a proper and workmanlike manner and providing suitable wires and fittings render to the Wiring Company quarterly accounts indicating the amount of electrical energy supplied to the premises on which such work has been carried out and the amount received by the Corporation from the consumer in respect thereof and until such wires and fittings have been paid for as herein-after provided the Corporation will pay to the Wiring Company one penny per Board of Trade unit

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912. for all electrical energy so supplied and paid for Provided that the minimum payment to the Wiring Company in any year shall be one shilling for each 8-candle power lamp or its equivalent installed.

6. The Corporation shall use all proper and reasonable efforts to secure payment by the consumer for the electrical energy so supplied to him but in cases where they shall not be able to obtain such payment they shall not be called upon to make any payment to the Wiring Company in respect of the electrical energy so supplied and not paid for Provided nevertheless that if from any source the Corporation shall obtain part payment or a composition in lieu of payment therefor then the Wiring Company shall be entitled to a pro rata share of the moneys so received by the Corporation.

7. Every consumer shall have the option at or after the expiration of five years from the date of installation of purchasing the said wires and fittings installed in his premises at the original cost price plus 20 per cent. and less one-and-a-half per cent. per annum for depreciation and such original cost shall include all expenses of general management and the sum so paid by the consumer shall be forthwith paid by the Corporation to the Wiring Company and the Corporation shall have the option of compounding for all future payments by one single payment to the Wiring Company calculated on the same basis but such option shall only be exercisable by the Corporation in respect of the whole of the wires and fittings installed by the Wiring Company in the said district.

8. Should a consumer give notice to the Corporation that he is desirous of purchasing the wires and fittings installed upon his premises or should the Corporation give notice to the Wiring Company that they are desirous of compounding as aforesaid in respect of the whole of the wires and fittings installed by the Wiring Company in their said district the Wiring Company shall render to the Corporation an account of the prime cost to the Wiring Company of such wires and fittings so proposed to be dealt with and of the work in connexion therewith and a duly authorised officer of the Corporation shall be at liberty to examine the books of the Wiring Company for the purpose of checking such cost.

9. In case any consumer shall require fittings other than those kept in stock by the Wiring Company for the class of property to which his premises belong he shall on ordering the same pay the Wiring Company for the same which shall thereupon become his property.

10. The Wiring Company shall carry out all work under this agreement in accordance with the rules and regulations of the fire insurance companies and of the Corporation and to the satisfaction in all things of the Corporation's engineer.

11. The Corporation shall not be under any liability to see that any patent owned or used or purported to be owned or used by the Wiring Company is good valid or subsisting and the Wiring Company shall pay all patent dues and royalties and shall indemnify the Corporation from all claims and demands in respect thereof or of any infringement of patent. A.D. 1912.

12. It shall be at the option of the Corporation whether they do or do not exact from the consumer any extra or special payment in respect of the wires and fittings placed by the Wiring Company on his premises but if they do exact such payment it shall not in any case exceed the amount payable to the Wiring Company under clause 5 hereof.

13. The Wiring Company shall not be liable for any repairs to or maintenance of the wires and fittings all of which including the renewal of the lamps shall be done by the consumer at his own expense but the Wiring Company shall without charge make good all defects in materials or workmanship during a period of six months from installation.

14. Either the Corporation or the Wiring Company may put an end to this agreement by giving to the other six calendar months' notice in writing that they do not desire to continue the same as regards the supply to any additional consumers but such determination shall not affect the terms of this agreement as regards work then already done.

The SCHEDULE above referred to.

made this day of
one thousand eight hundred and ninety-eight between THE MAYOR
ALDERMEN AND CITIZENS OF THE CITY AND COUNTY BOROUGH OF
CANTERBURY (herein-after called "the Corporation") of the first
part THE NATIONAL ELECTRIC FREE WIRING COMPANY LIMITED
(herein-after called "the Wiring Company") of the second part
and

the occupier (or owner or lessee for an unexpired term of
years) of the premises
(herein-after called "the consumer") of the third part whereby it
is agreed as follows:—

1. This agreement as between the Corporation and the Wiring Company is supplemental to an agreement already made between them dated the day of one thousand eight hundred and ninety- but the consumer shall not be in any way bound or affected by such last-mentioned agreement.

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912.

2. The Wiring Company will in a proper manner and in accordance with the regulations of the fire insurance companies and free of cost to the consumer furnish and fit up on the said premises the necessary wires and fittings for electric lighting (herein-after called "the installation").

3. The installation shall be and be deemed to be the property of the Corporation unless and until paid for as herein-after provided.

4. The consumer shall have the option at or after the expiration of five years from the date of installation of purchasing the installation on payment of the original cost price plus 20 per cent. and less $1\frac{1}{2}$ per cent. per annum from the date of installation for depreciation and such original cost price shall be taken to be such price as shall be certified by the town clerk for the time being of the Corporation. The option to purchase shall not include the main fuse switch or meter.

5. If the consumer shall require the fittings to be of a more expensive kind than those kept in stock by the Wiring Company for the class of property to which his said premises belong he shall pay for the same in cash and the same shall become his property.

6. Neither the Corporation nor the Wiring Company shall be liable for any repairs to or maintenance of the installation but the Wiring Company shall without charge make good or cause to be made good all defects in material or workmanship during a period of six months from the date of installation.

7. The consumer shall until purchase as aforesaid pay quarterly to the Corporation for the use of the installation one penny per Board of Trade unit for every unit of electrical energy supplied to the said premises and the minimum payment in any year shall be one shilling for each 8-candle power lamp or its equivalent installed.

8. If the consumer or other occupier for the time being of the said premises shall cease to take a supply of electrical energy to the said premises from the Corporation or shall neglect or refuse to pay for the use of the installation as aforesaid the Corporation may at any time enter upon the said premises and remove and take away the installation but if they shall do any damage to the premises by such removal they shall make good or cause to be made good the same.

Signature of consumer _____

Full Name _____

Address _____

[2 & 3 GEO. 5.] *National Electric Construction* [Ch. xcviij.]
Company Limited Act, 1912.

MEMORANDUM TO BE SIGNED BY LANDLORD WHERE CONSUMER IS ONLY A.D. 1912.
THE OCCUPIER.

I the undersigned being the landlord of the above-named consumer and being owner (or lessee for an unexpired term of years) of the said premises hereby consent to the installation of wires and fittings in the said premises upon the terms and conditions of the above agreement.

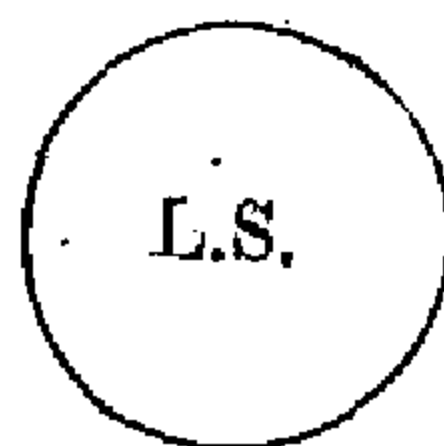
Signature of landlord _____

Full Name _____

Address _____

Date _____

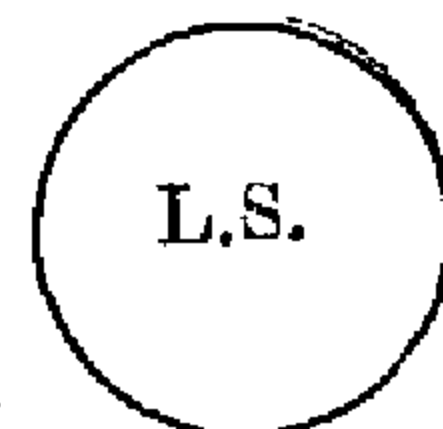
Passed under the seal of the }
said Wiring Company in }
the presence of



Directors.

Secretary.

Sealed with the seal of the }
said Corporation in the }
presence of



HENRY FIELDING
Town Clerk.

A.D. 1912.

THIRD SCHEDULE.

AGREEMENTS CONFIRMED.

<i>Date.</i>	<i>Parties.</i>
1 December 1897	- The National Electric Free Wiring Company Limited of the one part and the mayor aldermen and burgesses of the borough of Taunton of the other part.
26 January 1898	- The National Electric Free Wiring Company Limited of the one part and the Fleetwood and District Electric Light and Power Syndicate Limited of the other part.
7 June 1898	- The National Electric Free Wiring Company Limited of the one part and the mayor aldermen and citizens of the city of Lincoln of the other part.
3 January 1899	- The National Electric Free Wiring Company Limited of the one part and the Redditch Urban District Council of the other part.
15 February 1899	- The National Electric Free Wiring Company Limited of the one part and the mayor aldermen and burgesses of the borough of Tunbridge Wells of the other part.
19 April 1899	- The National Electric Free Wiring Company Limited of the one part and the Crystal Palace District Electric Supply Company Limited of the other part.
17 May 1899	- The National Electric Free Wiring Company Limited of the one part and the urban district council of Rathmines and Rathgar of the other part.
12 June 1899	- The National Electric Free Wiring Company Limited of the one part and the urban district council of Pembroke of the other part.
4 October 1899	- The National Electric Wiring Company Limited of the one part and the lord mayor aldermen and citizens of the city of Belfast of the other part.

[2 & 3 GEO. 5.] *National Electric Construction* [Ch. xcvi.]
Company Limited Act, 1912.

<i>Date.</i>	<i>Parties.</i>	<i>A.D. 1912.</i>
30 October 1899	- The National Electric Wiring Company Limited of the one part and the mayor aldermen and citizens of the city of Gloucester of the other part.	—
16 November 1899	- The National Electric Wiring Company Limited of the one part and the mayor aldermen and burgesses of the borough of Crewe of the other part.	
20 December 1899	- The National Electric Wiring Company Limited of the one part and the mayor aldermen and burgesses of the borough of Bangor of the other part.	
23 January 1901	- The National Electric Wiring Company Limited of the one part and the mayor aldermen and burgesses of the county borough of Swansea of the other part.	
30 December 1901	- The National Electric Wiring Company Limited of the one part and the Hornsey Urban District Council of the other part.	
30 December 1902	- The National Electric Wiring Company Limited of the one part and the mayor aldermen and burgesses of the borough of Taunton of the other part.	
7 October 1904	- The National Electric Construction Company Limited of the one part and the mayor aldermen and burgesses of the borough of Carnarvon of the other part.	
14 February 1905 and 22 February 1905.	The provost magistrates and councillors of the burgh of Borrowstounness of the one part and the National Electric Construction Company Limited of the other part.	

A.D. 1912.

FOURTH SCHEDULE.

Stamp.



THIS INDENTURE made the eighteenth day of June one thousand nine hundred and three between THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF CARNARVON herein-after called the Local Authority of the one part and THE NATIONAL ELECTRIC WIRING COMPANY LIMITED a company duly incorporated and having its registered offices at number thirty-four Victoria Street in the county of London herein-after called the Contractors of the other part.

WHEREAS the Local Authority have obtained from the Board of Trade a Provisional Order under the Electric Lighting Acts 1882 to 1899 for the supply of electrical energy within the borough of Carnarvon herein-after called the borough which Provisional Order is herein-after referred to as the Order:

And whereas the Local Authority are desirous of exercising the powers conferred upon them by the eleventh section of the Electric Lighting Act 1882 for procuring the execution and maintenance of the works necessary for the purposes of the supply and for the supply of electricity contemplated by the Order and have accordingly agreed with the Contractors in manner herein-after appearing:

Now this indenture witnesseth as follows:—

1. The Local Authority shall within one month from the date hereof secure within the borough a suitable site for the erection of a generating station for generating and distributing electrical energy within the borough and the Contractors shall in accordance with the specification or specifications and at a price which has been agreed between the parties hereto and also in accordance with a plan or plans to be agreed erect and equip such station with all suitable appliances and plant adequate for the supply of electrical energy in accordance with the terms of the Order and the Contractors shall procure such station to be duly completed and equipped within one year from the date of these presents provided always that the said specification and plan or plans may be varied in such manner as the parties hereto may mutually agree or failing agreement as Sir William Preece or some other consulting engineer to be agreed upon may decide The agreement between the parties fixing the price as aforesaid and the specification or specifications in connexion therewith are herein-after referred to as the construction agreement.

2. The Contractors shall within the like period of one year from the date of these presents and on the same terms and conditions as

aforesaid cause suitable mains to be laid in the streets of the borough specified for that purpose in the Order and also all such other mains as the Local Authority and the Contractors may think fit with this proviso that the Contractors shall be given reasonable time to complete extensions to the scheme agreed upon. A.D. 1912.

3. Forthwith after the entering into of the construction agreement the Contractors shall proceed to execute the works thereby indicated with all practicable dispatch and to the satisfaction of the engineer to be appointed by the Local Authority Provided always that if any difference shall arise between the parties hereto or in respect of the provisions of this clause the same shall be referred in manner provided in clause one hereof such works and all other similar works within the borough which may from time to time be constructed or executed by the Contractors in pursuance of this agreement are hereinafter referred to as the works The Local Authority shall be entitled to appoint an engineer to superintend the construction of the works and from time to time to dismiss such engineer and appoint another in his stead The engineer for the time being shall be at liberty to enter upon and inspect such works whilst in progress and afterwards and in the event of such engineer being at any time dissatisfied with any work or plant or material as not being in accordance with the construction plans and specifications the Contractors shall forthwith rectify such work or replace any such plant or material to which exception shall have been taken by the engineer subject however to the Contractors having the right to refer any dispute as provided for in clause one.

4. When and so soon as the works shall be completed the Contractors shall by means thereof provide to the Local Authority or as the Local Authority may direct a continuous supply of electrical energy within the borough for public and private purposes in accordance in all respects with the requirements of the Order and so that the Contractors shall on behalf of the Local Authority at all times fulfil and observe all the obligations and conditions which are imposed upon the undertakers by the Order.

5. Until otherwise directed by the Local Authority the Contractors shall supply electrical energy to such consumers within the borough as shall from time to time desire the same and as shall be entitled to claim the same from the Local Authority under the terms of the Order and the rates chargeable for energy so supplied shall be according to a tariff to be from time to time fixed in that behalf by the Contractors but so that the rates chargeable shall not exceed for energy supplied for private lighting six pence per Board of Trade unit Energy supplied for power on the maximum demand system three pence per Board of Trade unit for the first hour and one penny half-penny per Board

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

A.D. 1912. of Trade unit for energy beyond the first hour For energy supplied for the lighting of streets and public buildings four pence per Board of Trade unit.

6. The cost of maintaining and conducting the works and supplying the necessary staff and materials for that purpose shall be borne by the Contractors.

7. The Contractors shall throughout the continuance of this agreement keep and maintain the works in full and proper repair to the satisfaction of the engineer appointed by the Local Authority so as to secure the due maintenance of a continuous supply of electrical energy as herein-before mentioned.

8. The Contractors shall throughout the continuance of this agreement be entitled to all profits derived from the supply of electrical energy as aforesaid subject to the provision next herein-after contained for repayment of loans in respect of the capital expenditure incurred by the Local Authority in respect of the said system of electrical supply and interest thereon and subject also to clause 16 hereof.

9. The Local Authority shall raise all moneys required for capital expenditure under this agreement by loans which shall be repaid by way of annuities (being equal annual payments of principal and interest combined) within the period sanctioned for the loan by the Local Government Board and the Contractors shall in each year throughout the continuance of this agreement pay to the Local Authority one month before such annuities or annual repayments are repayable by the Local Authority to the mortgagee all such sums as may be repayable by the Local Authority in respect of such loans as aforesaid.

10. During the continuance of this agreement the Contractors shall indemnify the Local Authority against all claims which may arise against the Local Authority by reason of the obligations and liabilities created and imposed by the Order except in so far as such claims shall arise by reason of the act or default of the Local Authority.

11. The Contractors shall not without the consent in writing of the Local Authority assign their rights and obligations under this agreement nor assign underlet or part with the possession of the works constructed in pursuance of these presents but so that such consent shall not be unreasonably withheld in the case of a suitable and responsible transferee or transferees and so that no claim for any fine or premium shall be made by the Local Authority for granting any such consent But any such transfer notwithstanding that the Local Authority shall have given their consent thereto shall take effect without prejudice to any guarantee then in force.

12. Notwithstanding anything to the contrary in this agreement contained it shall be lawful for the Local Authority at any time during the continuance of this agreement to prescribe the prices to be charged by the Contractors to consumers taking a supply of energy from them in pursuance of the powers hereby conferred and if and whenever the Local Authority shall exercise this power the Contractors shall thenceforth (until the Local Authority shall otherwise require) charge only such prices as shall thus be prescribed by the Local Authority. Provided always that if the Local Authority shall exercise this power and shall thus regulate the prices charged by the Contractors it shall be lawful for the Contractors to serve upon the Local Authority a notice terminating this agreement forthwith and thereupon the Local Authority shall pay to the Contractors a sum equivalent to the loss if any incurred by the Contractors in maintaining the works and supplying energy pursuant to this agreement and in addition thereto a sum equal to five per centum per annum upon the aggregate capital expenditure of the Local Authority in respect of the said system of electrical supply calculated from the date hereof. A.D. 1912.

13. So long as the Local Authority shall allow the Contractors to supply electrical energy to consumers within the borough and to collect from the consumers so supplied the charges due according to the tariff prescribed by the Contractors (subject to the limitation of price above set forth) the Contractors shall not look to the Local Authority for payment for energy supplied by the Contractors excepting such as shall be supplied to the Local Authority for the public lighting or the municipal offices or otherwise upon the direct order of the Local Authority but if the Local Authority shall (otherwise than by a year's notice at the end of ten years as contemplated by clause 15 of this agreement) terminate the right of the Contractors to supply electrical energy to general consumers or to collect charges for energy so supplied according to the Contractors' tariff (subject to limitation as aforesaid) it shall be lawful for the Contractors to serve upon the Local Authority a notice terminating this agreement forthwith and thereupon the Local Authority shall pay to the Contractors the sum specified in the last preceding clause hereof.

14. The Local Authority shall at the request of the Contractors exercise all such rights and powers vested in the undertakers by the Order for procuring the construction of the said works.

15. The Local Authority shall have the right to determine this agreement upon giving one year's previous notice in writing to that effect to the Contractors which notice shall expire at the end of ten years from date current is first available for private lighting but if such right is not exercised then the Local Authority will have the

[Ch. xcvi.] *National Electric Construction* [2 & 3 GEO. 5.]
Company Limited Act, 1912.

* A.D. 1912. right to determine the agreement by similar notice at the end of fifteen years from the same date and in the event of such notice not being given this agreement shall be determined without notice at the end of twenty years from the same date and this agreement shall continue in force until thus determined by the Local Authority or effluxion of time subject to the provisions of clauses 12 and 13 hereof.

16. In the event of the Local Authority determining this agreement at the end of 10 years as aforesaid the Contractors shall refund to the Local Authority all profits if any earned and divided by them in respect of the supply of electrical energy as aforesaid over and above three per centum per annum after providing for the repayment of loans as aforesaid but nothing in this clause shall affect the profits if any made by the Contractors under the construction agreement Should the Local Authority not take the undertaking over at the expiry of ten years then after that period the profits for the purposes of this clause will be ascertained every five years and the surplus if any paid to the Local Authority.

17. The Contractors shall keep proper and sufficient books of account of such kind and in such manner as the Board of Trade shall approve The Contractors shall also prepare for publication an annual statement of account of the undertaking as provided by section nine of the Electric Lighting Act 1882 and such statement before being published shall be examined and audited by the Local Government Board auditor The Contractors shall give to the auditor his clerks and assistants access to such books and documents relating to the undertaking as shall be necessary for the purpose of the audit and shall afford to him and them all facilities for the proper execution of his and their duty The costs of and incidental to the audit shall be payable by the Contractors.

18. The Contractors shall pay to the Local Authority upon the expiry of the first year's working one hundred and fifty-five pounds to cover costs incurred in obtaining the Provisional Order the costs charges and expenses of the engineer or engineers appointed by the Local Authority to supervise the construction on their behalf such however not to exceed one hundred guineas also the sum or sums (to be ascertained) incurred in raising the necessary capital.

19. The whole of the works specified shall be fully completed within one year from the date when the loan herein-before referred to is authorised under a penalty of ten pounds for every week beyond such time that the work remains unfinished unless such delay is due to causes over which the Contractors have no control.

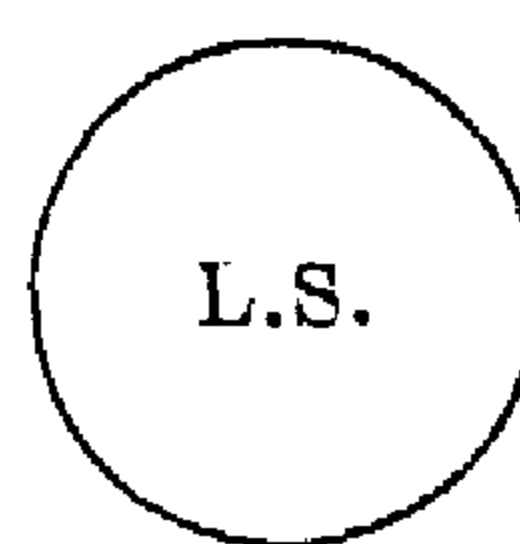
20. Any dispute or difference which may arise between the parties as to the construction of these presents or in connexion with

[2 & 3 GEO. 5.] *National Electric Construction* [Ch. xcvihi.]
Company Limited Act, 1912.

any work to be done or money to be paid in pursuance hereof shall A.D. 1912.
except as otherwise herein provided be determined by arbitration by
an arbitrator to be appointed by the Board of Trade but otherwise in
accordance with the provisions of the Arbitration Act 1889.

In Witness whereof

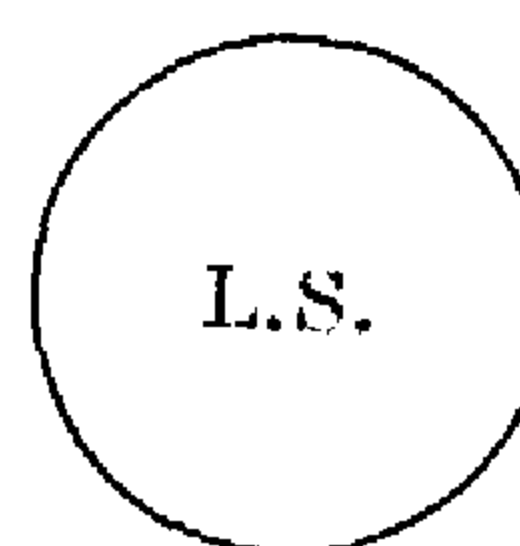
The common seal of the mayor aldermen
and burgesses of the borough of
Carnarvon was hereunto affixed this
eighteenth day of June one thousand
nine hundred and three in the presence
of



W. G. THOMAS
Mayor.

Pursuant to an Order of the Council made on the 9th June 1903.

The common seal of the National Electric
Wiring Company Limited was hereunto
affixed this eighteenth day of June
one thousand nine hundred and three
in the presence of



R. STEWART BAIN }
GEORGE ELLIS } Directors.
W. B. COWNIE Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.

1. *Pharmaceutical industry* – The pharmaceutical industry is the largest of the three industries, with sales of \$10.5 billion in 1997. It is the only industry that has not experienced a decline in sales since 1990. The industry is dominated by a few large firms, with the top five firms accounting for 40% of sales. The industry is highly competitive, with many firms competing for market share.